

Family Law and Civil Law in Pakistan

Marriage, Divorce, Guardianship, Inheritance, Property, Contracts, and Civil
Procedure — Statutes, Provisions, and Penalties

Pakistan Legal Reference Series

Compiled August 2026

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Part I — Family Law

1. Muslim Family Laws Ordinance (MFLO), 1961

The core statute governing marriage, divorce, and maintenance for Muslims in Pakistan.

Provision	Requirement	Penalty for Violation
Section 5 — Registration of marriage	Every marriage must be reported for registration to the local Union Council (<i>Nikah Registrar</i>).	Failure to register: imprisonment up to 3 months , or fine up to Rs. 1,000 , or both (marriage remains legally valid, but registration is compulsory).
Section 6 — Polygamy	A man wishing to contract a second (or further) marriage during subsistence of an earlier one must obtain written permission from the Arbitration Council , which requires the consent of the existing wife/wives.	Contracting a marriage without permission: imprisonment up to 1 year , or fine up to Rs. 5,000 , or both; the entire agreed dower (<i>haq mehr</i>) becomes immediately payable to the existing wife/wives.
Section 7 — Talaq (divorce) procedure	A husband pronouncing <i>talaq</i> must give written notice to the Chairman of the Union Council and a copy to the wife. Talaq does not become effective until 90 days after notice, or the end of pregnancy if the wife is pregnant, to allow for reconciliation via an Arbitration Council.	Non-compliance: imprisonment up to 1 year , or fine up to Rs. 5,000 , or both.
Section 9 — Maintenance	A wife may apply to the Arbitration Council/Family Court if her husband fails to maintain her.	Arrears are recoverable as a fine ; default in payment may lead to imprisonment as an unpaid fine under the Family Courts Act.
Section 4 — Inheritance (orphaned grandchildren)	Grandchildren of a deceased whose parent predeceased the grandparent are entitled to a share equal to what their parent would have received (representative succession).	N/A — matter of civil right, enforceable through a civil/succession suit.

2. Dissolution of Muslim Marriages Act, 1939

Provides grounds on which a Muslim wife may seek judicial dissolution of marriage (*faskh*) through the Family Court, including:

- Husband's whereabouts unknown for **4 years**
- Failure to provide **maintenance for 2 years**
- Husband's imprisonment for **7 years or more**
- Failure to perform **marital obligations for 3 years** without reasonable cause
- Husband's **impotence**
- Husband's insanity, leprosy, or virulent venereal disease
- **Cruelty** (physical or emotional), including habitual assault, associating with women of ill repute, forcing an immoral life, disposing of the wife's property, or obstructing religious practice
- **Khula** — the wife may also seek dissolution by returning the dower/benefits received, even without proving fault, if she satisfies the court she cannot live within the limits prescribed by Allah with her husband.

3. Family Courts Act, 1964

Establishes **Family Courts** with exclusive jurisdiction over:

1. Dissolution of marriage
2. Dower (haq mehr)
3. Maintenance
4. Restitution of conjugal rights
5. Custody of children
6. Guardianship
7. Dowry-related recovery

Procedure: Suits are filed directly in the Family Court (no separate civil suit needed); the court must first attempt **reconciliation**; appeals lie to the District Court, and a further revision to the High Court.

4. Guardians and Wards Act, 1890

Governs custody (*hizanat*) and guardianship of minors' persons and property.

- Mother has a preferential right to custody of young children (traditionally sons under 7, daughters until puberty, though courts now apply a "welfare of the minor" standard above rigid age rules).
- Father generally remains the natural guardian of the minor's property and person in a legal sense, but custody and guardianship can be separated.
- The **paramount consideration** in any custody dispute is the **welfare of the minor**, not the technical right of either parent — this is well established in Pakistani case law.

5. Child Marriage Restraint Act, 1929 (and provincial reforms)

Jurisdiction	Minimum Marriage Age	Penalty
Federal / Punjab / KP / Balochistan (under the 1929 Act as retained)	Male: 18, Female: 16	Contracting/solemnizing/facilitating a child marriage: imprisonment up to 1 month and/or fine (under the original 1929 Act, since amended in some provinces to be more stringent).
Sindh (Sindh Child Marriage Restraint Act, 2013)	18 years for both male and female	Imprisonment of 2-3 years and/or fine up to Rs. 45,000 for whoever contracts, solemnizes, or facilitates a child marriage.
Punjab (Punjab Marriage Restraint (Amendment) Act, 2015)	Retains 18/16 but increases penalties for the male party marrying a minor girl.	Enhanced imprisonment and fines compared to the original 1929 Act.

6. Domestic Violence Laws (Provincial)

Each province has enacted its own protection legislation (e.g., **Sindh Domestic Violence (Prevention and Protection) Act, 2013**; **Punjab Protection of Women Against Violence Act, 2016**; similar KP and Islamabad Capital Territory laws).

Common features: - Definition of domestic violence includes physical, psychological, sexual, and economic abuse. - Victim may apply for a **Protection Order**, **Residence Order**, or **Monetary Relief Order** from a Protection/District/Family Court. - **Violation of a protection order** is a criminal offence: typically imprisonment up to **1 year** and/or fine, on top of any separate PPC charges (hurt, criminal intimidation, etc.) that may apply to the underlying conduct.

7. Dowry and Bridal Gifts (Restriction) Act, 1976

Restricts the value of dowry, bridal gifts, and marriage expenses to reduce social pressure.

- Violating prescribed limits: fine and, on repeat offence, imprisonment up to **6 months**.
- Non-return of dowry articles after divorce is separately actionable in the Family Court.

8. Muslim Personal Law (Shariat) Application Act, 1962

Applies Islamic personal law (rather than local custom) to Muslims in matters of intestate succession, marriage, dissolution of marriage, guardianship, and gifts, subject to the specific statutory modifications above (MFLO, Dissolution Act, etc.).

Part II — General Civil Law

9. Contract Act, 1872

Governs formation and enforcement of contracts.

- **Essentials of a valid contract:** offer, acceptance, lawful consideration, capacity of parties, free consent, lawful object (Section 10).
- **Void contracts:** agreements without consideration (Section 25, with exceptions), agreements in restraint of marriage (Section 26), trade (Section 27), or legal proceedings (Section 28), and wagering agreements (Section 30).
- **Breach of contract** — remedies are primarily **civil**, not criminal: compensation for loss (Section 73), and specific performance under the Specific Relief Act, 1877 (e.g., where damages would be inadequate — often used for immovable property sale agreements).
- **Fraud and misrepresentation** may separately attract criminal liability under the Pakistan Penal Code (cheating, forgery) in addition to civil rescission of the contract.

10. Specific Relief Act, 1877

Provides equitable remedies where monetary compensation is inadequate:

- **Specific performance** of contracts (especially sale of immovable property).
- **Injunctions** (temporary/permanent) to prevent breach of an obligation.
- **Declaratory decrees** confirming a legal right or status.
- **Rectification/cancellation/rescission** of instruments.

11. Transfer of Property Act, 1882

Regulates transfer of immovable property by act of parties (sale, mortgage, lease, exchange, gift).

- **Sale** (Section 54): transfer of ownership for a price; sale of tangible immovable property valued Rs. 100+ must be by **registered instrument**.
- **Mortgage** (Section 58): transfer of interest in property to secure a loan — multiple forms (simple, usufructuary, English mortgage, mortgage by conditional sale).
- **Gift** (Section 122): transfer without consideration, requiring acceptance during the donor's lifetime.
- Non-registration of a required document renders it **inadmissible as evidence of the transaction** (linked to the Registration Act, 1908), though it does not itself create criminal liability.

12. Registration Act, 1908

Mandates registration of specified documents (sale deeds of immovable property over Rs. 100, gift deeds, leases beyond one year, etc.) within **4 months** of execution, extendable by the Registrar for a further 4 months on payment of a fine.

13. Limitation Act, 1908

Prescribes time limits within which a civil suit must be filed, or the right to sue is barred. Key periods:

Type of Suit	Limitation Period
Recovery of immovable property (based on title)	12 years
Suit for specific performance of a contract	3 years from the date fixed for performance
Suit for compensation for breach of contract	3 years
Suit for recovery of money lent	3 years
Suit for possession by a person excluded from a joint family property	12 years
Appeal from an original civil decree	90 days (High Court) / 30 days (subordinate courts), varies

14. Code of Civil Procedure (CPC), 1908

The master procedural code for **all civil litigation** in Pakistan.

- **Order I-XX**: parties to suits, framing of suits, pleadings, summons, discovery, evidence, judgment and decree.
- **Jurisdiction**: every civil suit is triable by the court of the lowest grade competent to try it, based on pecuniary and territorial jurisdiction.
- **Execution of decrees** (Order XXI): a decree-holder may seek attachment and sale of the judgment-debtor's property, arrest and detention in civil prison (in limited circumstances, and never for women, subject to conditions), or appointment of a receiver.
- **Appeals**: first appeal to the District Court/High Court depending on pecuniary value; second appeal to the High Court on a substantial question of law only (Section 100).
- **Res judicata** (Section 11): bars re-litigation of a matter already directly and substantially decided between the same parties.

15. Succession Law

- **Muslims**: governed by Islamic law of inheritance (fixed shares — *Fara'id* — for Quranic heirs, e.g., spouse, children, parents), as applied via the Muslim Personal Law (Shariat) Application Act, 1962, and enforced through a **Succession**

Certificate obtained from the civil court or via the **Sindh/Punjab/KP Union Council succession-certificate schemes** for movable property.

- **Non-Muslims:** governed by the **Succession Act, 1925** (testamentary and intestate succession for Christians, Parsis; separate customary/personal rules apply for Hindus in some respects).
- Obtaining a **Letter of Administration** or **Probate** is required to administer a deceased person's estate where a will exists; a **Succession Certificate** is required to collect debts/securities of a deceased.

16. Consumer Protection

Provincial consumer protection laws (e.g., **Punjab Consumer Protection Act, 2005**; similar Sindh and Islamabad laws) allow consumers to seek compensation and, in some cases, criminal penalties (fines, and imprisonment for repeat/fraudulent offenders) against suppliers of defective goods or deficient services through dedicated **Consumer Courts**.

17. Rent Laws

Provincial **Rent Restriction/Tenancy Acts** (e.g., Sindh Rented Premises Ordinance, 1979; Punjab Rented Premises Act, 2009) regulate: - Grounds for eviction (default in rent, personal need of landlord, structural danger, sub-letting without consent). - Fixation and enhancement of "fair rent." - Mandatory notice periods and hearings before Rent Controllers, with appeal to the District Court.

Disclaimer: Family and civil law outcomes depend heavily on specific facts, provincial statute variations, and current case law. This document is a general reference; consult a licensed family/civil law advocate for advice on a specific matter.